

University Grants Commission Act, 1994

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University Grants Commission Act, 2050

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Amending Acts

?. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.01.07

?. Act to Amend Some Nepal Acts Relating to Education, 2077 2077.03.11

?. Act to Amend Some Nepal Acts, 2082 2082.04.14

Act No. 25 of the year 2050

An Act made to provide for University Grants Commission

Preamble: Whereas, it is expedient to establish and make provision for a University Grants Commission to perform functions relating to the proper distribution of grant amounts received from various sources for the operation and development of universities in Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and to determine the academic standard of universities and provide encouragement to impart quality education,

Now, therefore, Parliament has enacted this Act in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev.

?. Short title and commencement: (?) This Act may be called the "University Grants Commission Act, 2050".

(?) This Act shall come into force from the date appointed by the Government of Nepal by notification in the Nepal Gazette.

?. Definition: Unless the subject or context otherwise requires, in this Act,-

(?) "Commission" means the University Grants Commission established pursuant to Section ?.

(?) "University" means a university established or to be established pursuant to the prevailing law.

(?) "Chairperson" means the Chairperson of the Commission.

(?) "Member" means a member of the Commission, and the term also includes the Chairperson and the Member-Secretary of the Commission.

(?) "Secretary" means the Secretary of the Commission.

(?) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

?. Establishment of Commission: (?) A University Grants Commission shall be established in Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. for the proper distribution of

grant amounts received from various sources for the operation and development of universities and for determining the academic standard of universities and providing quality education.

(?) The Commission shall be called "University Grants Commission" in the English language.

(?) The office of the Commission shall be located in the Kathmandu Valley.

?. Commission to be autonomous body: (?) The Commission shall be an autonomous and corporate body with perpetual succession.

(?) The Commission shall have its own separate seal for all its acts and business.

(?) The Commission may, like a person, acquire, use, sell or otherwise dispose of movable and immovable property.

(?) The Commission may, like a person, sue and be sued in the same name.

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Constitution of Commission: (?) The Commission established pursuant to sub-section (?) of Section ? shall be constituted as follows:-

(?) A person nominated by the Government of Nepal from among reputed educationists - Chairperson

(?) Two Vice-Chancellors nominated by the Government of Nepal from among the Vice-Chancellors of universities - Member

(?) Member, National Planning Commission (looking after education) - Member

(?) Secretary, Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077. Ministry of Education, Science and Technology - Member

(?) Secretary, Ministry of Finance - Member

(?) Two persons nominated by the Government of Nepal from among scholars and senior professors who have made special contributions to higher education - Member

(?) Two persons nominated by the Government of Nepal from among persons from various fields who have made special contributions to the field of higher education - Member

(?) Secretary - Member-Secretary

(?) The term of office of nominated members shall be four years, and after the expiry of the term, they may be re-nominated.

(?) The Government of Nepal may, on the recommendation of the Commission with reasons, by notification in the Nepal Gazette, make changes in the members of the Commission.

?. Functions, duties and powers of Commission: (?) The functions, duties and powers of the Commission shall be as follows:-

(?) To advise the Government of Nepal on the establishment of universities.

(?) To determine policies relating to providing grant amounts received from various sources to universities.

(?) To provide grants to universities and to recommend, for universities requesting additional grants, to the

concerned bodies.

(?) To maintain coordination among universities to make the academic programs conducted in universities standard.

(?) To formulate appropriate programs for enhancing academic standards.

(?) To make necessary arrangements relating to determining appropriate academic standards in universities.

(?) To make necessary arrangements relating to the exchange of scholarships, fellowships etc. between universities or educational institutions within and outside Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(?)(?) To make necessary arrangements by preparing a directive relating to credit transfer between universities.

(?)(?) To perform functions relating to quality assurance and accreditation of universities.

(?)(?) To determine the equivalence of academic degrees conferred by foreign universities or equivalent educational institutions.

(?) To maintain coordination among universities.

(?) To submit an annual report of the activities of the Commission to the Government of Nepal.

(?) To perform other functions as prescribed for the fulfillment of the objectives of the Commission.

Added by the Act to Amend Some Nepal Acts, 2082.(?) The provision of clause (?) of sub-section (?) shall come into effect from the ?st day of Shrawan, ???? B.S., and if the equivalence of any academic degree conferred by a foreign university or equivalent educational institution before that period has been determined under the prevailing law, it shall not be necessary to re-determine the equivalence of such academic degree of such university or educational institution. Added by the Act to Amend Some Nepal Acts, 2082.(?) The university determining equivalence under sub-section (?) shall, within three months from the date of commencement of this sub-section, send to the Commission a record containing details of the academic degree determined for equivalence and the university or educational institution conferring such degree. Added by the Act to Amend Some Nepal Acts, 2082.(?) It shall not be necessary to have the equivalence of an academic degree of a foreign university or equivalent educational institution, already determined once by the Commission under this Act, re-determined by the Commission. Added by the Act to Amend Some Nepal Acts, 2082.(?) The Commission shall update the details of the academic degrees and universities or educational institutions determined for equivalence under sub-sections (?) and (?) every six months and also publish them on its website.

(?) The Commission may, if it deems necessary, seek advice from any domestic or foreign expert or consultant.

?. Power to call for details: (?) In the course of the functions and duties mentioned in Section ?, the Commission may call for necessary details relating to the financial transactions, existing funds, academic programs, curriculum or other activities of any university or educational institution operated under it, and it shall be the duty of the concerned university to provide such details.

(?) If it is necessary to inspect any university or educational institution operated under it regarding the details called for under sub-section (?), the Commission may inspect or cause inspection as required, and it shall be

the duty of the concerned university to provide necessary assistance to the person coming for such inspection.

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Meeting of Commission: (?) A meeting of the Commission shall be held at least once a month.

(?) The meeting of the Commission shall be chaired by the Chairperson, and in the absence of the Chairperson, a member designated by the Chairperson shall chair the meeting of the Commission.

(?) The presence of fifty percent of the total number of members of the Commission shall constitute a quorum for a meeting of the Commission.

(?) The decision of the majority shall prevail in a meeting of the Commission, and in case of a tie, the person chairing the meeting may exercise a casting vote.

(?) The decisions of the meeting of the Commission shall be certified by the Member-Secretary.

(?) Other procedures relating to the meeting of the Commission shall be as determined by the Commission.

?. Power to constitute committee or sub-committee: (?) The Commission may, as necessary, constitute a committee or sub-committee to perform any of its functions to be carried out under this Act or the rules made under this Act.

(?) The functions, duties and powers and the procedure of a committee or sub-committee constituted under sub-section (?) shall be as prescribed by the Commission.

???. Consultation with Commission for establishing university: The Government of Nepal shall consult with the Commission in relation to establishing a new university.

???. Providing grant to university: (?) Notwithstanding anything contained in the prevailing law, after the commencement of this Act, grants to be given to a university shall be provided through the Commission.

(?) The Commission may recommend a university that complies with the prescribed conditions to any other institution for grants.

(?) The Commission may provide financial assistance to private campuses that fulfill the conditions prescribed by it.

(?) Other provisions relating to grants to be given to a university shall be as prescribed. Added by the Act to Amend Some Nepal Acts Relating to Education, 2077.???. Granting for free higher education: (?) The Commission shall provide, in the form of a grant, to the teaching institution where they are studying, an amount equivalent to the tuition fee payable for Dalit, disabled and economically poor students enrolled in universities or constituent and community educational institutions under them.

Explanation: For the purpose of this sub-section, the basis, criteria, classification and other provisions shall be as prescribed by the Government of Nepal by notification in the Nepal Gazette. (?) Notwithstanding anything contained in sub-section (?), the amount equivalent to the tuition fee shall not be provided to the teaching institution for students in the following circumstances:- (?) Those who have discontinued their studies, (?) Those who have changed their faculty of study, (?) Those whose attendance is less than the prescribed percentage of attendance, (?) Those who have failed continuously for two years, (?) Those who have submitted false details, or (?) Those who are already studying free of cost in another teaching

institution. (?) If the grant provided under sub-section (?) is not utilized for the students mentioned in sub-section (?), the concerned teaching institution shall return such amount to the Commission. (?) If the concerned teaching institution fails to return the amount under sub-section (?) to the Commission, the Commission may withhold any grant given to such educational institution. Added by the Act to Amend Some Nepal Acts Relating to Education, 2077.???. Arrangement of funds for free higher education: The amount required under Section ??? shall be managed on an annual basis from the allocated budget of the University Grants Commission for the purpose of providing free higher education, as a grant given by the Commission to universities or constituent and community educational institutions under them. ?? Functions, duties, powers, service, terms and facilities of Chairperson: (?) The provisions relating to the functions, duties, powers, service, terms and facilities of the Chairperson shall be as prescribed. (?) The Chairperson shall be a full-time office bearer. ?? Secretariat of Commission: (?) There shall be a secretariat for the operation and administrative work of the Commission. (?) The Secretary, under the supervision of the Chairperson, shall conduct the day-to-day business of the Commission. (?) The appointment of the Secretary shall be made by the Government of Nepal. (?) The term of office of the Secretary shall be four years. (?) The functions, duties, powers, remuneration and facilities of the Secretary shall be as prescribed. ?? Provision relating to employees: (?) There shall be employees in the Commission as required. (?) The posts, qualifications, remuneration and other facilities of employees required for the Commission shall be as prescribed. ??

Fund of Commission: (?) The Commission shall have its own separate fund, and the following amounts shall be deposited in that fund:- (?) Amount received from the Government of Nepal, (?) Amount received from international organizations, foreign governments or agencies, (?) Amount received from any other source. (?) If the Commission is to receive any amount under clause (?) of sub-section (?), action shall be taken through the Government of Nepal. (?) The amount in the fund of the Commission shall be deposited by opening an account in any bank in Nepal Deleted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 , and the operation of the account shall be as prescribed. (?) All expenditures incurred by the Commission shall be borne from the fund under sub-section (?). ?? Accounts and audit: (?) The accounts of income and expenditure of the Commission shall be kept in accordance with the prevailing law. Amended by the Act to Amend Some Nepal Acts Relating to Education, 2077.(?) The audit of the Commission shall be conducted by the Auditor General. (?) The Government of Nepal may, if it so desires, at any time inspect or cause the inspection of the accounts of income and expenditure and related books of accounts of the Commission. ?? Delegation of power: The Commission may delegate some of the powers vested in it under this Act or the rules made under this Act to the Chairperson, member, Secretary, committee or sub-committee of the Commission or any other employee as required. ?? Liaison with Government of Nepal: While liaising with the Government of Nepal, the Commission shall do so through the Words transformed by the Act to Amend Some Nepal Acts Relating to Education, 2077: - In place of "Ministry of Education and Sports", "Ministry of Education, Science and Technology". Ministry of Education, Science and Technology. ?? Power to make rules: For the fulfillment of the objectives of this Act, the Commission may make necessary rules, and such rules shall come into force only after approval by the Government of Nepal.